

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
OFFICES, IDENTIFIERS, AND EVENTS — NOT A REAL FILING**

Rule 26(f) Report, ESI Protocol, and Privilege Protocol

United States District Court for the Eastern District of North Carolina

Rhea Calder v. Cinder Lake Health Network, Inc.

Civil Action No. SYN-EDNC-25-CV-0882

Docket Entry 12 — Filed January 5, 2026

Plaintiff Rhea Calder and Defendant Cinder Lake Health Network, Inc., through fictional counsel Nina Ashe and Mara Voss, submit their joint Rule 26(f) report. The parties propose phased discovery on Calder's federal retaliation claim, preservation of ordinary business sources, a practical ESI protocol, and a process for document-specific privilege claims.

The parties disagree about whether Cinder Lake's August 21, 2025 compliance response affects protection for attorney-led investigation materials. This report records the disagreement without resolving waiver or treating a shared subject as a disclosed communication.

Claims, Defenses, and Discovery Scope

Calder alleges retaliation under 31 U.S.C. § 3730(h) after she reported suspected federal-program billing discrepancies. Cinder Lake denies retaliation and asserts legitimate employment reasons. Neither side asks this report to decide the truth of the billing concerns.

Initial discovery will address Calder's reports, employment chronology, decision-makers, nonprivileged remediation facts, and ordinary billing-control records. Investigation communications may be withheld only on a stated privilege or work-product basis. The parties reserve relevance and proportionality objections to requests that sweep beyond those subjects.

Preservation and Custodians

The parties will preserve relevant email, office documents, calendar entries, messaging exports, and ordinary compliance records from agreed custodians. Calder will preserve materials retained lawfully from her employment and post-employment communications. Cinder Lake will preserve records held by compliance, human resources, relevant supervisors, and designated information-technology personnel.

Outside counsel's files will not be collected into a merits production merely because they are preserved. Preservation is not production, admissibility, or waiver. Any later dispute about a source will be addressed through a targeted request and a record adequate for judicial review.

Search, Collection, and Production Format

Counsel will exchange proposed date ranges, custodians, and search terms before broad collection. Responsive electronic documents will be produced in reasonably usable form with ordinary metadata sufficient to identify date, author, recipients, and family relationships. Spreadsheets may be produced natively when static images would obscure ordinary content.

No party must reveal credentials, system vulnerabilities, or real patient information. The record is fictional, but the protocol follows data-minimization principles. A producing party may use placeholders for irrelevant personal identifiers while preserving searchable text needed to evaluate the dispute.

Privilege Review and Logging

A producing party may withhold an attorney-client communication or protected work product and identify the claim in a privilege log consistent with Rule 26(b)(5). The log should provide date, participants, document type, general subject, and asserted protection without disclosing the protected substance.

Categorical descriptions may be used for genuinely repetitive groups if they permit evaluation. The receiving party may request clarification of a particular entry. A challenge must identify the disputed item or category and explain why the stated basis is insufficient; disagreement does not itself authorize access to the withheld content.

Proposed Rule 502(d) Protection

The parties jointly request an order under Federal Rule of Evidence 502(d) governing disclosure made in this federal litigation. Production under the order should not waive attorney-client privilege or work-product protection in this or another federal or state proceeding solely because protected material was produced.

The proposed protection is prospective. It does not determine whether Cinder Lake's August 21, 2025 pre-suit letter disclosed privileged information, and it neither erases nor creates any earlier waiver. The parties reserve their positions on that separate historical question.

Clawback and Dispute Procedure

A producing party that identifies protected material in a litigation production will notify the recipient with enough information to locate the item and state the asserted protection. The recipient will sequester the item, stop use, and may present the claim to the Court without relying on the substance beyond what the rules permit.

Clawback under the proposed order will not concede relevance, privilege, work product, or waiver. The parties will confer before motion practice. If court review is necessary, they will use a public motion and appropriately handled supporting material rather than placing assertedly protected content in a public filing.

Schedule and Signatures

The parties propose initial disclosures by January 16, written discovery beginning January 20, substantial document production by February 20, fact discovery through May 29, and later expert and dispositive-motion dates to be set by case-management order. These dates do not shorten any privilege-dispute procedure the Court orders.

Submitted jointly on January 5, 2026. **Nina Ashe**, fictional counsel for Rhea Calder, and **Mara Voss**, fictional counsel for Cinder Lake Health Network, Inc., certify that they conferred and served this report through the synthetic civil-filing channel.